



Notification Waiver Determination

Itochu Corporation – TC Skyward Aviation (Aviation Capital Group)

Acquisition	Itochu Corporation (Itochu) applied for a notification waiver in respect of its proposed acquisition of 50% of the shares in TC Skyward Aviation U.S., Inc (SKYU , which is the holding company of Aviation Capital Group), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	15 September 2026

Parties to the Acquisition	The acquirer, Itochu, is a diversified general trading and investment company with interests ranging from raw materials through to manufacturing, distribution, retail, and services. In Australia, Itochu operates as a trading business across sectors including coal, metals and minerals, machinery, general merchandise, chemicals, and food. Itochu holds limited interests in the aviation sector in Australia, being an interest in Killick Aerospace, an Ireland-based supplier of aftermarket commercial aircraft and engine solutions with limited operations in Australia. Itochu is an existing shareholder in Tokyo Century Corporation, and accordingly already holds an indirect interest in Aviation Capital Group. The target, SKYU, is a holding company for Aviation Capital Group. Aviation Capital Group is a full-service aircraft asset manager based in the United States which operates a business leasing commercial aircraft to airlines. It specialises in commercial aircraft leasing and provides aircraft asset management services and aircraft financing solutions to third parties. In Australia, Aviation Capital Group's services are limited to dry leases of commercial aircraft.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal overlap between Itochu and Aviation Capital Group in the supply of commercial aircraft leases to airlines in Australia

	b. there are alternative suppliers of commercial aircraft leasing services available to customers in Australia c. there is a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary conduct, bundling or tying of products or services post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act